



CHAPTER xxviii.

An Act to confirm a Provisional Order under A.D. 1924.
the Private Legislation Procedure (Scotland) —
Act 1899 relating to St. Enoch's Church and
Parish Quoad Sacra. [14th July 1924.]

WHEREAS His Majesty's Secretary for Scotland
has made the Provisional Order set forth in the
schedule hereunto annexed under the provisions of the
Private Legislation Procedure (Scotland) Act 1899 and 62 & 63 Vict.
it is requisite that the said Order should be confirmed c. 47.
by Parliament :

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the
Lords Spiritual and Temporal and Commons in this
present Parliament assembled and by the authority of
the same as follows :—

1. The Provisional Order contained in the Schedule
hereunto annexed shall be and the same is hereby
confirmed. Confirmation of
Order in
Schedule.

2. This Act may be cited as the St. Enoch's Church
and Parish Quoad Sacra Order Confirmation Act 1924. Short title.

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A.D. 1924.

S C H E D U L E.

ST. ENOCH'S CHURCH AND PARISH
QUOAD SACRA.

Provisional Order to authorise the suppression of St. Enoch's Church Glasgow and the discharge of all the Corporation of Glasgow's liabilities therefor the annexation of St. Enoch's quoad sacra parish Glasgow to another parish or parishes the suppression of Hogganfield Church and Parish quoad sacra and the disjunction and erection of a new church and parish quoad sacra the transfer of the endowments of Hogganfield Church to such new church and parish and the further endowment thereof and the application of the prices of Hogganfield Church and manse the transfer to the Presbytery of Glasgow of St. Enoch's Sunday school and other property in Ropework Lane and mortifications connected with St. Enoch's Church and parish the transfer of certain other funds of St. Enoch's Church to the new church and other matters relating to these objects.

WHEREAS St. Enoch's Church Glasgow was built by the magistrates and town council of the city of Glasgow as one of the city churches of Glasgow and was erected into a church by decret of erection by the Court of Teinds of date the seventeenth day of July one thousand seven hundred and eighty-two and the said magistrates and town council became by the said decret responsible for the minister's stipend and various other charges and liable to uphold and repair the said church :

And whereas by decret of the Court of Teinds dated the seventh day of June one thousand eight hundred and twenty a parish quoad sacra was attached to St. Enoch's Church :

And whereas by decree of the Court of Session of date the fifteenth day of July one thousand nine hundred and twenty-one in causa the Reverend Archibald Maclaren then minister of St. Enoch's Church against the Corporation of Glasgow (hereinafter referred to as "the Cor-

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poration ") as coming in place of the said magistrates and council the stipend payable by the Corporation to the minister of St. Enoch's Church was increased to six hundred pounds per annum : A.D. 1924.
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And whereas owing to the migration of population and to changes that have taken place in the district in which the said church is situated and with the view of providing improved traffic facilities in and through St. Enoch's Square the Corporation approached the Presbytery of Glasgow (hereinafter referred to as "the Presbytery ") and suggested that if the Presbytery would agree to the removal of St. Enoch's Church the Corporation would provide funds for the erection and endowment of a new church in lieu of the present St. Enoch's Church and for various other objects :

And whereas after various negotiations the Corporation offered to pay and the Presbytery agreed to accept the sum of thirty-six thousand five hundred pounds in full of the Corporation's pecuniary liabilities in connection with St. Enoch's Church and Parish quoad sacra subject to a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 being confirmed by Parliament and to the sanction of the Court of Teinds to the suppression of the said church being obtained :

And whereas the persons resident in St. Enoch's quoad sacra parish are now under nine hundred and fifty in number and they all reside within about three minutes' walk of other two similar churches with adequate sitting accommodation for them, and it is expedient to annex St. Enoch's Parish quoad sacra to another parish or parishes :

And whereas considerable shifting of the population has been taking place the tendency being to go towards the outside areas and several new centres of population have sprung up and at Riddrie which is in the parish of Glasgow a large number of houses of one two three four and five apartments have been erected under the housing scheme of the Corporation of Glasgow and there will in the immediate future be at Riddrie a population of about five thousand people :

And whereas the houses that are being erected at Riddrie are mainly within the quoad sacra parish of Hogganfield which is within the bounds of the Presbytery of Glasgow but are at a considerable distance from the

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A.D. 1924. — existing Hogganfield Church and the church at Hogganfield has only sitting accommodation for four hundred and is too small to accommodate the future population :

And whereas the Presbytery of Glasgow after conferring with the kirk-session of St. Enoch's think it wise in lieu of the present St. Enoch's Church to erect a larger new church at this new centre of population at Riddrie convenient to the dwellings of the population there and unite the future congregation of such new church with the congregation of Hogganfield Church :

And whereas the Presbytery of Glasgow after conferring with the minister and kirk-session of Hogganfield Church are of opinion that the most expedient course would be to suppress Hogganfield Church and Parish quoad sacra and to disjoin and erect a new church and parish quoad sacra which would include the existing church and parish quoad sacra of Hogganfield and be called St. Enoch's Hogganfield Church and Parish quoad sacra and endow the same and as soon as practicable build a new church within such new parish and transport St. Enoch's Hogganfield Church and endowments to such new church and thereafter sell or otherwise use or dispose of the existing Hogganfield Church and manse and relative offices :

And whereas in order to carry through such arrangements it would be expedient that Hogganfield Church and Parish should be suppressed and the decret of the Court of Teinds dated the twelfth day of January one thousand eight hundred and eighty-five erecting Hogganfield Church and Parish quoad sacra should be annulled and that the trustees holding the existing endowments for the minister of Hogganfield Church and for keeping up the fabric of Hogganfield Church should be authorised to transfer such endowments to the trustees to be appointed to act under the deed of constitution to be granted by the General Assembly of the Church of Scotland for the proposed St. Enoch's Hogganfield Church and Parish quoad sacra to be applied by them in terms thereof and that parties holding any other funds or investments for Hogganfield Church should be authorised to pay the same over to the trustees for the St. Enoch's Hogganfield Church :

And whereas after the proposed larger new church is erected the building forming the present Hogganfield Church will become unnecessary and it is expedient that

authority should be given to the trustees then vested in and holding the property of the present Hogganfield Church and manse to transfer and dispone the present Hogganfield Church and manse and sites to the Presbytery of Glasgow and that the Presbytery of Glasgow should thereafter be vested in them and have power to use sell or dispose of the same and to apply the proceeds thereof and of any other moneys belonging to Hogganfield Church towards the erection and endowment of St. Enoch's Hogganfield Church and Parish and as the manse at present forms part of the endowment of Hogganfield Church and is built on the same plot of ground as the church and represents one-fourth of the total value of the said church manse and sites it is expedient that one-fourth of the nett proceeds of the said church manse and sites should be applied towards the endowment of St. Enoch's Hogganfield Church :

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- And whereas there is a heritable property in Rope-work Lane Glasgow at present occupied by St. Enoch's sessional and Sunday school and Manning and Company Limited which is vested in the minister and kirk-session of St. Enoch's Church and which for many years has been used for Sunday school and other purposes in connection with St. Enoch's Church and there are also mortifications bequests or charities (specified in the Third Schedule to this Order) vested in and administered by the kirk-session of St. Enoch's Church for religious and educational work within the present parish of St. Enoch's and the distance between the St. Enoch's Church and the proposed new church is too great to allow of the minister and kirk-session of such new church conveniently administering the said heritable property and mortifications and it is expedient that the said heritable property in Ropework Lane and the said mortifications bequests or charities should be vested in or transferred to trustees for the Presbytery of Glasgow for the purposes specified in this Order and that the trustees holding the said property in Ropework Lane and mortifications bequests or charities be authorised to dispone or transfer the same to trustees for the Presbytery of Glasgow :

And whereas the minister of St. Enoch's Church in virtue of his office is a patron trustee or director on various public trusts and institutions and the minister and kirk-session of St. Enoch's Church are members of the General

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A.D. 1924. Session Glasgow and it is desirable to keep up the historical associations connected with St. Enoch's Church and therefore expedient that the minister of the St. Enoch's Hogganfield Church and the proposed new church should take the place of the minister of St. Enoch's Church on these public trusts and institutions and that the minister and kirk-session of St. Enoch's Hogganfield Church and the said new church should be members of the General Session Glasgow :

And whereas with the view of keeping up the historical associations of St. Enoch's Church it is expedient that the Presbytery of Glasgow should have power to remove from the present St. Enoch's Church the organ bell clock communion vessels and tables war memorial stained glass windows and other moveable fittings and furniture and use these in the proposed new church or any church or church buildings the Presbytery may think advisable :

And whereas it is expedient that with the exception of the said mortifications and bequests or charities specified in the Third Schedule to this Order all other investments bequests or funds connected or that may be connected with St. Enoch's Church or congregation should be paid over or transferred to the minister and kirk-session of the proposed St. Enoch's Hogganfield Church to be applied or administered by them :

And whereas it is expedient that the Presbytery should apply the proceeds of any sale of Hogganfield Church and other assets towards the cost of such new larger church and that they should also out of the said thirty-six thousand five hundred pounds have power to pay the remainder of the cost of the new larger church and to contribute to an increased endowment of St. Enoch's Hogganfield Church and also to pay the cost of a church hall at present being erected at Riddrie and a retiring allowance to the Reverend J. F. Andison the present minister of Hogganfield Church and any ann and vacant stipend that may become due and also to pay the costs of this Order and any other expenditure that they may incur in connection therewith and that any balance that may remain should be formed into a fund to be called "the St. Enoch's Fund" to be used for

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purposes connected with the Church of Scotland within the bounds of the Presbytery of Glasgow : A.D. 1924.

And whereas it is expedient that the Court of Teinds should have power to consider and dispose of all matters coming before the said court under this Order either on a single application from the Presbytery of Glasgow or other parties interested or on several applications :

And whereas the purposes aforesaid cannot be effected without an Order from the Secretary of Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited for all purposes as the *St. Enoch's Church and Parish Quoad Sacra Order 1924.* Short title.

2. It shall be lawful for the Presbytery of Glasgow to make application to the Court of Teinds to suppress *St. Enoch's Church and parish quoad sacra Glasgow* and to annex *St. Enoch's quoad sacra parish to Tron Parish quoad sacra Glasgow* or to such other parish or parishes as the Presbytery may determine and to annul the decret of the Court of Teinds for the erection of *St. Enoch's Church* of date the seventeenth day of July one thousand seven hundred and eighty-two and the decret of the Court of Teinds of date the seventh day of June one thousand eight hundred and twenty so far as relates to *St. Enoch's Parish quoad sacra.* Suppression of *St. Enoch's Church and Parish.*

3. If by decree of the Court of Teinds *St. Enoch's Church and Parish quoad sacra* is suppressed the Corporation shall at the first term of Whitsunday of Martinmas after the date of such decree pay to the Presbytery the sum of thirty-six thousand five hundred pounds in commutation of the Corporation's pecuniary liabilities in connection with the said *St. Enoch's Church and the parish quoad sacra* connected therewith and in full of any claim by the Presbytery for the erection of a new church in lieu of the present *St. Enoch's Church* and as from the date of payment of the said sum of thirty-six thousand five hundred pounds the Corporation shall be discharged and relieved of all obligations under the said decret of erection of *St. Enoch's Church* of date the seventeenth day of July one thousand seven hundred Payment by the Corporation to the Presbytery of 36,500*l.* and discharge of the Corporation's liabilities.

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Stamp duty. 4. Within three months of the passing of the Act confirming this Order the Presbytery shall produce to the Commissioners of Inland Revenue a King's Printers' copy of the Act duly impressed with the ad valorem bond duty on the sum of thirty-six thousand five hundred pounds which the Corporation obliges itself to pay under the section of this Order of which the marginal note is "Payment by the Corporation to the Presbytery of thirty-six thousand five hundred pounds and discharge of the Corporation's liabilities" and in default of such production the duty with the interest thereon at the rate of five per centum per annum from the date of the passing of the Act confirming this Order shall be a debt due to His Majesty from the Corporation and recoverable as such.

Erection of new church and parish and sup- 5. It shall be lawful for the Presbytery of Glasgow to make application to the Court of Teinds to suppress Hogganfield Church and Parish quoad sacra to mark

out and designate a new parish which along with the existing Hogganfield Church shall be called St. Enoch's Hogganfield Church and Parish quoad sacra or such other name as the Presbytery may determine and to disjoin the district forming such new parish from the parish or parishes to which the same or part thereof may presently belong and which district so to be marked out may include the existing parish quoad sacra of Hogganfield and to erect such district into a parish quoad sacra in connection with the Church of Scotland in accordance with and subject to the provisions of the New Parishes (Scotland) Act 1844 and if the Court of Teinds shall be satisfied that it is proper to grant the application the Court of Teinds may find and declare that it is proper that the power conferred on it by this section should be exercised and thereupon it shall be lawful for the Court of Teinds to grant the prayer of the petition for the erection of the present Hogganfield Church and new parish into the St. Enoch's Hogganfield Church and Parish quoad sacra or such other name as the Presbytery may determine and also to annul the decree of the Court of Teinds dated the twelfth day of January one thousand eight hundred and eighty-five whereby the church and parish of Hogganfield were erected into a church and parish quoad sacra to suppress Hogganfield Parish and to annex the area or parts thereof of the said parish to the new parish to be designated or to one or more of the adjoining parishes and to decern that the existing provisions (including the proceeds of the manse) for endowing the minister and maintaining the fabric of the present Hogganfield Church shall be applied thereafter towards the endowment of the minister of the said St. Enoch's Hogganfield Church and Parish and maintaining the fabric of the said church the paying or providing for the feu-duty or ground burdens on the site thereof or for such other purposes in connection with the endowment of the said church and parish as the court may determine.

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 pression of
 Hogganfield
 Church and
 Parish and
 application
 of its
 endowments.

6. When decree shall have been pronounced in terms of the immediately preceding section it shall be lawful for the Court of Teinds to grant warrant and authority for the execution of all deeds which may be necessary to give effect to the provision for the transference of the endowment of the minister and the provision for the maintenance of Hogganfield Church to the St. Enoch's

Execution
 of deeds
 transferring
 Hogganfield
 endow-
 ments.

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A.D. 1924. — Hogganfield Church and Parish and also to grant warrant and authority to the trustees acting under the existing deed of constitution of Hogganfield Church to pay and convey all properties funds or investments in their hands to the trustees acting under the deed of constitution to be granted by the General Assembly of the Church of Scotland for the St. Enoch's Hogganfield Church and Parish.

Transfer of
Hogganfield
Church
manse and
sites to
Presbytery.

7. When decree shall have been pronounced as aforesaid suppressing the present church and parish of Hogganfield and when the new larger church shall have been erected and the St. Enoch's Hogganfield Church transported to such new larger church it shall be lawful for the Court of Teinds to grant warrant and authority to the trustees then holding the present Hogganfield Church and manse to convey and make over to the Moderator and the Clerk of the Presbytery of Glasgow for the time being and their successors in office as trustees for the said Presbytery all and whole Hogganfield Church offices and manse and the sites on which they stand as the same are described in the titles and in the First Schedule to this Order and the said trustees for the Presbytery of Glasgow shall have power to sell dispose of let or use the same or any part thereof all in such manner as the Presbytery of Glasgow may think most expedient and to pay all costs and charges incurred by them and to apply one-fourth of the nett proceeds towards the endowment of St. Enoch's Hogganfield Church and the other three-fourths towards its erection or endowment and it shall be lawful for the Court of Teinds to authorise the clerk of Teinds or the parties holding the same to deliver up to the Presbytery of Glasgow the titles of Hogganfield Church and manse.

Transfer of
Hogganfield
mortifica-
tions or
bequests.

8. When decree shall have been pronounced erecting St. Enoch's Hogganfield Church and Parish quoad sacra into a parish church and suppressing Hogganfield Church and Parish any person holding funds mortifications or bequests connected or that may be connected with Hogganfield Church and Parish shall pay or transfer the same over to the trustees acting under the constitution of the new church and parish to be applied and administered by them as near as may be for the same purposes within the new parish quoad sacra as those for which they

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were held by such person or persons presently holding the same. A.D. 1924.

9. When decrees shall have been pronounced suppressing St. Enoch's Church and Parish quoad sacra and erecting St. Enoch's Hogganfield Church into a parish church the minister and kirk-session of St. Enoch's Church at the time of its suppression shall together with the then members of the kirk-session of Hogganfield become the minister and kirk-session of such new church and parish. Minister and kirk-session of new church.

10. When decree shall have been pronounced by the Court of Teinds suppressing St. Enoch's Church and Parish quoad sacra and annexing the parish quoad sacra to another parish or parishes within the Presbytery of Glasgow the said subjects in Ropework Lane Glasgow described in the Second Schedule to this Order and also the mortifications bequests or charities specified in the Third Schedule to this Order without the necessity of any new conveyance assignation or transfer or other deed or writing shall be transferred to and vested in the Moderator and Clerk of the said Presbytery for the time being and their successors in office as trustees for the said Presbytery in lieu and in place of the present trustees subject to all feu-duties ground or other burdens affecting the said subjects in Ropework Lane and mortifications bequests or charities and the said Presbytery shall give the use of the said subjects in Ropework Lane or any part thereof and the free revenue arising from time to time from the said subjects and mortifications bequests or charities to the minister and kirk-session or ministers and kirk-sessions of whatever church or churches whose parish or parishes quoad sacra include for the time being the area forming the present St. Enoch's Parish quoad sacra to be used and applied by such minister and kirk-session or ministers and kirk-sessions for such Sunday school missionary educational or religious purposes within the area of the present quoad sacra parish of St. Enoch's as such minister and kirk-session or ministers and kirk-sessions may from time to time consider will as near as may be fulfil the objects and purposes for which the said subjects and mortifications bequests or charities were originally donated or bequeathed and in the event of such minister and kirk-session or ministers or kirk-sessions declining the same or finding it impracticable owing to Transfer of heritable property and mortifications connected with St. Enoch's Church.

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Completion
of Presby-
tery's title.

11. For the purpose of enabling the Presbytery of Glasgow to complete a title if thought fit to the said subjects in Ropework Lane and mortifications bequests or charities this Order shall be deemed to be and may be used as a general disposition or assignation or transfer as the case may be of such subjects and mortifications bequests or charities to the Moderator and Clerk of the said Presbytery for the time being and their successors in office as trustees for the said Presbytery and the trustees or parties at present vested in the said subjects and mortifications bequests or charities are authorised and directed to grant at the Presbytery's expense such conveyances assignations and transfers of the said subjects and mortifications bequests or charities as may be necessary for completing the title of the Presbytery.

Powers of
Presbytery
in connection
with the
property
and mortifi-
cations of
St. Enoch's.

12. The Presbytery of Glasgow shall have full power to keep the said subjects in Ropework Lane in repair and to renew or rebuild the same or any portion thereof and to let such part of the subjects as may from time to time not be used for Sunday schools or otherwise by the minister and kirk-session of the parish which includes the site of the said subjects and the Presbytery shall also if they think it expedient have full power to hold let feu sell realise or dispose of the said subjects in Ropework Lane or any part thereof and also to realise the said mortifications bequests or charities and re-invest the same or any part thereof from time to time and from the proceeds and revenue to pay all expenditure and other costs they may incur in connection with the said subjects and mortifications bequests or charities and all conveyances transfers or assignations necessary or proper for the purposes aforesaid if authorised by the Presbytery

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and signed by the Moderator and Clerk to the Presbytery A.D. 1924.
 for the time being shall be valid and effectual. —

13. When decrees shall have been pronounced suppressing St. Enoch's Church and Parish quoad sacra and erecting the proposed St. Enoch's Hogganfield Church into a church and parish quoad sacra the minister of St. Enoch's Hogganfield Church and also the minister of the new larger church when it is erected and the present Hogganfield Church superseded shall be a patron trustee and director on all public trusts and institutions on which the minister of St. Enoch's Church and Parish quoad sacra has or may come to have right to act and he and his kirk-session shall be members of the General Session Glasgow.

Minister of
new church
to be patron
and trustee
on public
trusts.

14. With the exception of the mortifications bequests or charities specified in the Third Schedule to this Order all other investments bequests or funds connected or that may be connected with St. Enoch's Church or congregation shall be paid over or transferred to the minister and kirk-session of the proposed St. Enoch's Hogganfield Church and Parish quoad sacra to be applied or administered by them.

St. Enoch's
other funds
to go to the
new church.

15. It shall be lawful for the Presbytery of Glasgow to apply the proceeds of any sale of Hogganfield Manse (computed as provided in the section of this Order of which the marginal note is "Transfer of Hogganfield Church manse and sites to Presbytery") towards the endowment of St. Enoch's Hogganfield Church and the proceeds of Hogganfield Church and other assets towards the further endowment or erection of St. Enoch's Hogganfield Church and it shall also be lawful for the said Presbytery out of the said sum of thirty-six thousand five hundred pounds to endow St. Enoch's Hogganfield Church with an endowment of six hundred pounds per annum (any endowment that may be transferred from Hogganfield to be included as part of the said six hundred pounds) and to defray the cost of the church hall at present being erected at the corner of Old and New Cumbernauld Roads Riddrie and the site thereof and all expenditure connected therewith to contribute to a retiring allowance to the Reverend J. F. Andison the present minister of the said Hogganfield Church and to erect a new church and offices at Riddrie and to pay the cost of the site thereof and any ann and vacant stipend

Application
of funds
by the
Presbytery.

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Court of
Teinds
procedure.

16. It shall be lawful for the Court of Teinds to consider and dispose of all matters coming before the court under this Order either on a single application from the Presbytery of Glasgow or on several applications and that either at the instance of the Presbytery or of other parties interested and the court may if desired by the Presbytery adopt another name in lieu of St. Enoch's Hogganfield.

Costs of
Order.

17. All costs charges and expenses of and incident to the preparing obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Presbytery of Glasgow out of the said sum of thirty-six thousand five hundred pounds.

The SCHEDULES referred to in the foregoing A.D. 1924.
Order.

THE FIRST SCHEDULE.

ALL AND WHOLE that triangular plot or piece of ground part of the estate of Hogganfield consisting of one rood fourteen falls and twenty-one ells or thereby Scotch measure as delineated on a plan thereof made out by John Herbertson junior architect in Glasgow bounded the said plot or piece of ground on the south by the centre of a stone dyke being the March betwixt the estate of Hogganfield and the lands of Riddrie on the east by the Cumbernauld Road along which it extends one hundred and twenty feet or thereby and on the north by a line perpendicular to the building line on said road and terminating at the corner of the March dyke where it joins the plot of ground feued to James and Archibald Eadie along which line it extends two hundred and thirty-one feet eight inches or thereby lying formerly within the barony parish now within the parish of Glasgow and shire of Lanark being the subjects particularly described in disposition by William MacIntosh Esquire advocate Edinburgh Procurator for the Church of Scotland and others as trustees therein mentioned in favour of the said William MacIntosh Esquire and others as trustees therein mentioned dated the seventh twelfth and twenty-second days of July one thousand eight hundred and eighty-four and recorded for preservation as well as for publication in the register of the county of the barony and regality of Glasgow the twenty-fifth day of the month and year last mentioned together with the church manse offices and appurtenances and other erections on the said ground but always with and under the conditions provisions declarations and reservations so far as applicable and still subsisting specified in an instrument of Sasine in favour of Samuel Craige weaver at Hogganfield dated the eighth and recorded in the Particular Register of Sasines for Renfrewshire and Regality of Glasgow the twenty-eighth both days of July one thousand eight hundred and twenty-six.

THE SECOND SCHEDULE.

ALL AND WHOLE that lot or piece of ground in the burgh of Glasgow marked number two on a plan made out by John Herbertson architect in Glasgow and subscribed by Sir Francis

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A.D. 1924. Walker Drummond of Hawthornden Baronet Patrick Cockburn accountant in Edinburgh and James Renton accountant in Edinburgh and the Reverend James Henderson William Angus Hector Grant Peter Hill John Wright Junior Richard Kidston James Findlay Robert Bell and George Lyon Walker as relative to a disposition and assignation dated the eighth day of January one thousand eight hundred and thirty-five years granted by said Sir Francis Walker Drummond Patrick Cockburn and James Renton trustees as therein mentioned in favour of said Reverend James Henderson and others with the buildings erected thereon and measuring five hundred and sixty-six square yards and six square feet or thereby bounded the said lot or piece of ground so disposed on the east by the centre line of the Meuse Lane of fourteen feet wide after-mentioned along which it extends from C to B on the said plan sixty feet or thereby on the north by the property lately belonging to said Sir Francis Walker Drummond Patrick Cockburn and James Renton trustees and afterwards sold to Duncan M'Gregor innkeeper in Glasgow along which it extends from A to B on the said plan eighty-five feet or thereby on the west by the Ropework Lane or entry along which it extends from A to D on the said plan sixty feet or thereby and on the south by the centre line of the said Meuse Lane along which it extends from C to D on the said plan eighty-five feet or thereby being the subjects particularly described in an Instrument of Sasine in favour of the Reverend James Barr D.D. then minister of the parish of St. Enoch's Glasgow and William Angus and others then elders of said parish as trustees therein mentioned recorded in the register kept at Glasgow for the burgh of Glasgow the sixth day of September one thousand eight hundred and forty-four together with free ish and entry thereto but always with and under so far as still subsisting and applicable the burdens conditions and declaration specified in the said Instrument of Sasine.

THE THIRD SCHEDULE.

LIST OF MORTIFICATIONS BEQUESTS OR CHARITIES.

(1) Bequest of one hundred pounds by the trustees of the late Miss Margaret Davidson who resided in St. Vincent Place Glasgow and who died in or about one thousand eight hundred and forty-six for the parochial schools for St. Enoch's Parish Glasgow and to be under the charge of the minister and kirk-session.

(2) Bequest of one hundred pounds by James Hutchieson address unknown who died about one thousand eight hundred and sixty-one for the "Parochial schools of St. Enoch's Parish."

[14 & 15 GEO. 5.] *St. Enoch's Church* [Ch. xxviii.]
and Parish Quoad Sacra Order Confirmation Act, 1924.

The two last-mentioned bequests are at present invested together in bond for two hundred pounds No. 1467 by the Clyde Navigation Trustees in favour of the kirk-session of St. Enoch's Church. A.D. 1924.
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(3) Bequest of five hundred pounds by James Papillion Jamieson who died at Gourock on or about the third day of March one thousand eight hundred and sixty-nine to the kirk-session of the parish of St. Enoch's Glasgow for the support of week-day schools and Sunday schools in said parish in connection with the Church of Scotland or for assisting poor children to get education at said schools or for the support of libraries in connection with the said week-day or Sabbath schools or for the support of scripture readers or missionaries in said parish or for these or any similar purpose or purposes.

After deducting fifty pounds of Government duty that was paid on this bequest the balance viz. four hundred and fifty pounds was invested and forms bond for four hundred and fifty pounds No. 2538 by the Clyde Navigation Trustees in favour of the then minister and treasurer of St. Enoch's Church and their successors in office.

(4) Bequest of six hundred and sixty pounds by Sara Muir Stockwell Street Glasgow who died about one thousand eight hundred and sixty-four to the kirk-session of the parish church of St. Enoch's Glasgow for promoting missionary and religious schemes and purposes in the said parish.

(5) Bequest of fifty pounds by the trustees of the late John Calder who died about one thousand eight hundred and eighty-five for religious purposes in the parish of St. Enoch's as the session thereof may determine under deduction of legacy duty and charges which amounted to ten pounds thus reducing the bequest to forty pounds.

The two last-mentioned bequests are invested together in one bond No. 9703 by the Clyde Navigation Trustees in favour of the then minister and treasurer of St. Enoch's Church and their successors in office.

(6) Share of the revenue of the Lockhart and Stirling Mortification for Religious Books and Bibles the proportion accruing to St. Enoch's Church averaging about three pounds a year.

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